

April 13, 2026
Dept. 9
Probate Tentative Rulings

7.	26PR0045	IN THE MATTER OF THE JACK WILLIAM YOUNG AND BEVERLY JEAN YOUNG REVOCABLE LIVING TRUST
Determine Trust Property		

Petitioner is the trustee of the Jack William Young and Beverly Jean Young Revocable Living Trust ("Trust"), attached to the Petition as Exhibit A. Jack William Young was the last surviving settlor, and he died on October 3, 2025. His pour over Will, executed on the same day as the Trust, bequeaths his entire remainder estate to the Trust. Petition, Exhibit D. The settlors are survived by one adult child, who is one of five trust beneficiaries.

At issue is a financial brokerage account that was held jointly in the names of the settlors as individuals and does not designate a beneficiary. Petitioner requests that the Court find the account to be an asset of the Trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief. Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

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Petitioner references several indicators of decedent's intention that these assets be held by the Trust. First, Petitioner notes that the settlors' pour-over Will, executed concurrently with the Trust, bequeaths the entire remainder estate to the Trust. Second, the settlors executed a Declaration of Trust and an Assignment of Personal Property, attached to the Petition as Exhibits E and F. The Declaration of Trust expressly indicates the Trustors' intent to convey "all assets of every kind and description . . . which we jointly or individually presently own or hereafter acquire" to the Trust, including "(. . . all investments, bank accounts, etc.)" The Declaration of Trust further states that the "transfer shall apply even though 'record' ownership or title, in some instances, may, presently or in the future, be registered in our respective individual names, in which event such record ownership shall hereafter by deemed held in trust even though such trusteeship remains undisclosed." The Assignment of Personal Property indicates a similar intent and conveyance relative to the personal property. Third, there is no designated beneficiary on the account. Finally, the verified Petition declares that the surviving settlor met with his attorney and expressed his intention that the account be titled in his name, but died less than three weeks after that meeting.

Pursuant to Probate Code §850 and Estate of Heggstad (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition. The notice and Petition were mailed and filed on March 12, 2026. No objection has been filed to the Petition.

TENTATIVE RULING #7: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).